

The Carriage Of Passengers Suffering From Infectious Or Contagious Diseases Rules, 1990

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[THE-CARRIAGE-OF-PASSENGERS-SUFFERING-FROM-INFECTIOUS-OR-CONTAGIOUS-DISEASES-RULES-1990 of 1990](#)

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G.S.R. 556(E), dated 7th June, 1990.- In exercise of the powers conferred by clauses (e) and ((of sub-section (2) of Section 60 the Railways Act, 1989 (124 of 1989) read with of the General Clauses Act, 1897 (10 of 1897), the Central Government hereby makes the following rules for carriage of passengers suffering from Infectious or Contagious diseases, namely:-

1.

Short title.-

(1)

These rules may be called the Carriage of Passengers Suffering from Infectious or Contagious Diseases Rules, 1990.

(2)

They shall come into force on the date of commencement of the Railways Act, 1989 (

24 of 1989

).

2.

Persons suffering from any Infectious or Contagious diseases.-

(1)

The railway administration shall not carry, except in accordance with the conditions laid down in these rules, persons suffering from the following infectious or contagious diseases :

(i)

Cerebro-Spinal meningitis.

(ii)

Chicken-pox.

(iii)

Cholera.

(iv)

Diphtheria.

(v)

[* * *]

[Omitted by G.S.R. 340(E), dated 17.6.1997]

(vi)

Measles.

(vii)

Mumps.

(viii)

[* * *]

[Omitted by G.S.R. 340(E), dated 17.6.1997]

(ix)

Scarlet fever.

(x)

Typhus fever.

(xi)

Typhoid fever, and

(xii)

Whooping cough.

(2)

Nothing in sub-rule (1) shall apply in the case of closed (non-infective leprosy patients carrying a certificate from a Registered Medical Practitioner certifying them to be non-infective and such a certificate shall be produced on demand inside railways premises by any railway servant.

(3)

A person suffering from any of such diseases, as mentioned in the rule (1) of this rule, shall not enter or remain in any carriage on a railway servant travel in a train without the permission of the Station Master or other railway servant in charge of the place where such person enters upon the railways.

(4)

A railway servant giving such permission may, on the person suffering from the disease, agreeing to pay the usual number of fares for reservation compartment, arrange for his separation from other persons being or travelling upon the railway.

3.

Detention of Passengers attacked with any Infectious or contagious diseases.-

When a passenger is detained at railway station by a Medical Officer as a measure for prevention of the spread of infectious or contagious diseases referred to in sub-rule (1) of Rule 2 and when such a passenger is unable to continue the Journey by the train for which the ticket is issued and the period of its availability in terms laid down for break of journey enroute is exceeded the Station Master on the authority of certificate from the Medical Officer shall make the ticket available for the further journey by an endorsement the back of the ticket as under :

"Available by NoTrain(date)

from (Station)" and sign his name in full.

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